

Nadia Zahmoul

Subject: RE: Zahmoul v Zahmoul
Date: Monday, April 29, 2024 at 3:55:45 PM British Summer Time
From: Selby-King, Karen <Karen.Selby-King@justice.gov.uk>
To: Nadia <nadia@rosekross.com>
CC: Brent Molyneux KC <BMolyneux@29br.co.uk>, Nicholas Allen KC MCI Arb <nallenkc@29br.co.uk>, acampbellkc@29br.co.uk <ACampbellKC@29br.co.uk>
Attachments: image001.png, Zahmoul - Judgment - 29.04.2024 - Appeal - Final - AM.pdf

Dear Ms Zahmoul,

Please find attached a judgment in this matter from His Lordship refusing permission to appeal.

Kind regards

Karen

Karen Selby-King
Clerk to The Honourable Sir Jonathan Cohen
High Court Judge / Judge in charge of Family Division Appeals

Clerk to The Honourable Mr Justice MacDonald
Deputy Head of International Family Justice for England & Wales
Family Presiding Judge for London

Also temporary Clerk to The Honourable Ms Justice Russell
Phone: 0207 947 7426 **Mobile:** 07591 992371

From: Nadia <nadia@rosekross.com>
Sent: 24 April 2024 20:10
To: Selby-King, Karen <Karen.Selby-King@justice.gov.uk>
Cc: Brent Molyneux KC <BMolyneux@29br.co.uk>; Nicholas Allen KC MCI Arb <nallenkc@29br.co.uk>
Subject: Zahmoul v Zahmoul
Importance: High

Dear Judge,
I need permission and court action to file the following:

1. I seek to take court action against the Judgement made on 18 April 2024 and I seek to file an ***application for a judicial review*** with the High Court.
2. I seek your ***permission to appeal the Judgement*** of 18 April 2024 as set out in my ***Appellant's Notice FP161*** form sent to you on 17 April 2024.
3. I seek to ***join Mr. Rakishev and Hogan Lovell to the civil proceedings***. They are necessary for a fair, independent, and impartial trial. I cannot have a fair trial where the respondent is supported in the proceedings by "*invisible*" parties, not when those parties order acts of violence against my children and me. My children's lives and mine

are in immediate danger, we have been threatened several times and I have submitted the information and the evidence to Your Lordship. I seek to join them to the proceedings in order to have a fair, independent, and impartial trial.

4. I seek a ***Stay of the Proceedings*** until I have food and accommodation. It is illegal to force me into a tradeoff of my absolute human rights under Articles 2 and 6. It is illegal to fast track the Proceedings when I am hungry and homeless as a result of the respondent's breach of your order for MPS payments, as set out in my Appellant's Notice FP161. The Human Rights Act of 1998 protects ***both*** rights, not one or the other.

1. Human Rights Articles 2 and 6

My human rights are protected by the Human Rights Act of 1998 as set out in the European Convention on Human Rights. My absolute rights under Article 2 (the right to life) and Article 6 (the right to a fair trial) have been breached. My right to live and my right to a fair, independent, impartial trial have been breached. The way the decision was reached is wrong and I seek to cancel the judgement and demand compensation.

2. Appellant's Notice FP161

I sent Your Lordship my Appellant's Notice FP161 on 23 April 2024 and I seek your permission to appeal against the Judgement. I am not able to pay the Court Fees due to lack of funds. I do not have any financial resources because the respondent is in breach of the MPS order. I have informed the court several times that the respondent is in breach of the order you made on 30 June 2023 paragraph 7.1 Maintenance Pending Suit. The respondent has failed to make the payments for March and April 2024. MPS payments must now include rent as I have not been able to use the property in Wyoming since 1st February 2024 due to maintenance charges. Outstanding MPS payments of £51,524 (£18,762 per month in April and May, £7,000 per month for rent in February, March). ***I have no funds for food, accommodation, and basic necessities for the children and myself.*** I don't know the time limit to file my Appellant's Notice FP161 and I don't know the time limit to file my corrections to the Judgement. I am busy trying to protect my right to life and my right to a fair trial. The respondent's breach with your MPS order means that I have to spend my time looking for money for food and accommodation, at the risk of not having a fair trial. This tradeoff in my Absolute human rights between Article 2 and Article 6 is illegal, unethical, and inhuman.

3. Join Mr. Kenes Rakishev and Hogan Lovells to the Proceedings.

I seek to join Rakishev and Hogan Lovells to these Proceedings because they are directly related to the threat to the children's lives and mine. The respondent has tried to distance himself from ***Mr. Kenes Rakishev, Kazakhstan, Hogan Lovells***, and the ***Accorda***, but the links are well established and evidenced in documents filed in the Proceedings and in my emails to Your Lordship on 7 March 2024 and on 9 April 2024. In particular, evidence sent to Your Lordship on 9 April 2024 states that one of the parties' minor children and I were involved in an incident on 24 March 2024 which is directly related to the Proceedings, and which represents a direct threat to our lives. ***Furthermore, evidence sent to Your Lordship on 9 April 2024 demonstrates that Mr. Kenes Rakishev and the respondent are business partners and explains why this business association presents an immediate danger to the children's lives and mine.*** Rakishev is well known to the courts. He oversaw

the restructuring of **BTA Bank** following the bank's collapse in 2009 and became Chairman and CEO of BTA Bank in 2014. **Mr. Hardman, partner at Hogan Lovells**, oversees Rakishev's overall legal strategy and is known for his aggressive tactics (see NZ1 attached). Rakishev is linked to **Ramzan Kadyrov**, Head of the Chechen Republic, and designated by OFAC pursuant to the Russia Magnitsky Act "*for being responsible for extrajudicial killing, torture, or other gross violations of internationally recognized human rights*". According to a U.S. lawsuit, "**Kazakhstan v. Felix Sater**", "*Rakishev is reputed to have raped underage girls in Russia*" and organized "*no holds barred*" fighting contests involving eight-year-old children. The defendant (Felix Sater) stated that he was "**forced to hide in Israel for several months because Kenes Rakishev had, through Kadyrov, hired Chechen hit men to murder him**". For these reasons, it is essential that Rakishev and Hogan Lovells be joined to the Proceedings because I am attesting that they are providing significant legal and financial support to the respondent, and I cannot have a fair trial if they remain in hiding. I seek **transparency** in the Proceedings above all and **I seek to see in person those who threaten my children and me.**

4. Stay of the Proceedings and Confidentiality to Protect our Lives.

I seek a Stay of the Proceedings until I have food and accommodation, and until I have free legal help and protection for the children and me. These matters are complex and involve a direct threat to my children's lives and mine. I seek a Stay of the Proceedings because without a stay, the Proceedings and the Judgement would be unfair, inequitable and breach my human rights to life and to a fair trial. I am requesting that the information in this email remains confidential. I have copied Mr. Allen, Joint Head of 29 Bedford Row Chambers because Ms. Campbell has a professional conflict of interest as she represents the respondent. Please note that Mr. Molyneux works at 29 Bedford Row Chambers as well. The email sent by Ms. Campbell in exhibit NZ2 in which she copied the respondent represents an immediate threat to my safety and that of the children.

Sincerely,
Nadia Zahmoul

Veritas Numquam Perit

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